

Tales from the Helpdesk: Answers to Your Most Commonly Asked VR Questions

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TALE I

Vocational rehabilitation cannot provide support for postsecondary education for students with ID.

Within vocational rehabilitation (VR), postsecondary education for students with intellectual disability (ID) is a model of recent development. As such, unfamiliarity with this practice results in misinformation and lack of understanding of how it fits into the scope of services. The paradigm of individuals with ID attending college is new and challenging for some. But the potential of individuals with ID has been challenged before, an example being when the Supported Employment (SE) program emerged in the late 1980's. Once a challenge for VR, now thirty years later, SE is a fully integrated service delivery model within VR programs that is routinely used to prepare individuals with ID for work and life. Postsecondary education for students with ID can be seen as an opportunity (much like SE was) to expand the options for individuals with ID to succeed in competitive integrated employment. Key elements to garnering support from VR for postsecondary education for students with ID are communication, education, and collaboration.

In support of these efforts, Rehabilitation Act regulations align with VR providing support of postsecondary education for students with ID by:

1. citing counseling on the opportunities for IPSE within the required to be provided Pre-Employment Transition Services (34 CFR 361.48[a][2][iii]),
2. provision of informed choice and individualization of services (34 CFR 361.52),
3. direction that VR policy may not establish arbitrary limits on the nature and scope of VR services (34 CFR 361.50).

Perhaps the best indicator is consensus among experts and practitioners that postsecondary education or training is the new threshold for succeeding in today's economy, given that 11.5 of the 11.6 million jobs created from 2007-2017 required at least some postsecondary education.

TALE 2

VR does not provide funding for postsecondary education for students with ID.

Despite decades long history of funding higher education for people with disabilities of all types, VR is sometimes reluctant to fund postsecondary education programs for students with ID. This reluctance is not true in all states, with state VR programs varying in their degree of commitment to fund postsecondary education for students with ID. VR agencies each establish their own policies,

with approval authority to support postsecondary education for students with ID differing from state-to-state. This authority may be found at the counselor, supervisor, or even administrative levels of the agency. Just because a VR program supports postsecondary education does not mean they support it for students with ID. Reasons for this can be it can be the relatively recent emergence of inclusive postsecondary education programs, misperceptions or misinformation about how the programs work, agency culture, and costs. The best way to address these matters is informative communication with VR agency leadership. And keep in mind that regulatory intent language clarifies that training services provided by VR encompasses tuition and other services for students with intellectual disabilities in a Comprehensive Transition and Postsecondary Program for Students with Intellectual Disabilities (34 CFR 361.50 comment section).

TALE 3

VR tells us that they will pay for one student but not another student in our program.

A bit more complicated to address, this tale deals with “equity” and how it is defined, in this case, between entitlements versus eligibility programs. VR is an eligibility program with no provision of services based on entitlement, but as determined to meet individual needs. This individualization of services means that, even with the same disability diagnosis, two people may receive very different services. This can be based on individual circumstances, how their disability manifests, and financial circumstances.

Additionally, how individuals may be supported by VR can be impacted by two other components of the Rehabilitation Act. The first is an option provided by the Rehab. Act for states to apply a financial needs test by which an eligible individual may be required to help with the costs of needed services on a sliding scale, ranging from no-cost participation to covering full service(s) costs. The other is Order of Selection, by which VR can establish a waiting list based on disability significance, and levels of support required by individuals when resources are insufficient to meet the needs of all eligible individuals.

TALE 4

VR indicates that because our program doesn’t issue an Industry Recognized Credential, they cannot pay for students to participate in a postsecondary education program.

Over the time period of the Workforce Investment Act (WIA [1998-2014]) there occurred new standards for business/industry participation in the labor market. As a result, the Workforce Innovation and Opportunity Act (WIOA [2014-]) included “recognized postsecondary credential” and “industry recognized certificate” as new standards to meet industry demands. One is embedded in the other as a recognized postsecondary credential is one providing an industry recognized certificate, certification, . . . associates, or baccalaureate degree. Clarifying intent of

these new standards comes from sub-regulatory guidance from the Dept. of Labor (TEGL #10-16) citing WIOA is to help job seekers access employment, education, and support services to succeed in the labor market and to provide employers with those skilled workers. A study by the U.S. Chamber of Commerce finds skills identified as most important for the workplace are consistent with competencies attained through postsecondary education programs and evidenced through certification.

TALE 5

Is VR responsible for provision of ADA accommodations for students?

Prior to the passage of the Americans with Disabilities Act (ADA) in 1990, it was common for VR to provide support for accommodations in university or college settings. That changed with the ADA, where Title II indicated that qualified individuals with disabilities may not be excluded from participating in or receiving services, programs, or activities by public universities and colleges. This means that the onus of responsibility is on the university or college for provision of accommodations, inclusive of aids, benefits, or services. There may be, through the partnership between an institution of higher education and VR, provision of some assistance from VR, based on a very unique situation, but this type of assistance is by far the exception and not the rule.

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